

fee simple is, without prejudice to any conveyance for value previously made, to be conveyed and settled, and devolve in the same manner as the freeholds (*c*).

57. **Compensation for agricultural improvements.**—By the Agricultural Holdings (England) Act, 1883 (*d*), a tenant who has made on his holding certain improvements specified in the schedule to the Act is entitled on quitting his holding at the determination of his tenancy to compensation from the landlord for such improvements to be ascertained as provided by the Act. But by sect. 31, where the landlord is a trustee, the amount of compensation is not to be recoverable from him personally, but is to be charged on and recoverable against the holding only. And by sect. 42, subject to certain provisions as to Crown, duchy, ecclesiastical, and charity lands, a landlord, whatever may be his estate or interest in his holding, may give any consent, make any agreement, or do or have done to him any act in relation to improvements, in respect of which compensation is [*597] payable under the Act, as if he were, in the * case of an estate of inheritance owner thereof in fee, and in the case of a leasehold possessed of the whole estate in the leasehold.]

58. **Powers of majority of trustees.**—The general powers allowed to trustees must in a private trust be exercised by all the trustees as a *joint body*, but in *charitable* or *public* trusts the voice of the *majority* will bind the rest, and in certain cases the majority can give effect to their resolution by passing the legal estate under a statutory power (*a*).

59. **Case of suit instituted and a decree made.**—The powers assigned in the preceding pages to trustees must be taken subject to the qualification, that, if a *suit* has been instituted for the execution of the trust, *and a decree made*, the powers of the trustees are thenceforth so far paralysed that the authority of the Court must sanction every subsequent proceeding (*b*). Thus the trustees cannot commence or defend

[(*c*) 44 & 45 Vict. c. 41, s. 65;
and see 45 and 46 Vict. c. 39, s. 11.]

[(*d*) 46 & 47 Vict. c. 61.]

(*a*) See *supra*, pp. 540, 547.

(*b*) *Mitchelson v. Piper*, 8 Sim. 64;
Shewen v. Vanderhorst, 2 R. & M.
75; S. C. affirmed, 1 R. & M. 347;
Minors v. Batteson, 1 App. Cas. 428.